

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2661
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-809.01, Arizona Revised Statutes, is amended
3 to read:

4 8-809.01. Parents, guardians and custodians; rights

5 A. On initial contact with a child safety worker, a parent,
6 guardian or custodian WHO IS under investigation for an allegation of
7 abuse or neglect has the following rights:

8 1. To be informed of the specific complaint or allegation against
9 that person and that any responses to the complaint or allegation may be
10 used in a subsequent court proceeding.

11 2. To refuse to cooperate with the investigation or receive child
12 safety services offered pursuant to the investigation. A child may not be
13 temporarily removed based solely on a parent's, guardian's or custodian's
14 refusal to cooperate with the investigation.

15 3. Unless otherwise ordered by the court, to deny the worker entry
16 into the parent's, guardian's or custodian's home.

17 4. To respond to allegations either verbally or in writing and to
18 have this information considered in determining ~~if~~ WHETHER the child
19 requires child safety services.

20 5. To report a violation of the rights specified in this section
21 without fear of punishment, interference, coercion or retaliation.

22 6. To appeal determinations made by the department.

23 7. To seek the advice of an attorney and to have an attorney
24 present when questioned by a worker.

25 8. Unless otherwise ordered by the court, to refuse to do any of
26 the following:

27 (a) Sign a release of information document.

28 (b) Consent to take a drug or alcohol test.

29 (c) Submit to a mental health evaluation.

1 9. To receive information about the investigation and the
2 department's decision-making process.

3 10. TO BE INFORMED THAT THE PARENT OR GUARDIAN MAY DELEGATE
4 TEMPORARY GUARDIANSHIP OF THE CHILD PURSUANT TO SECTION 14-5104.

5 ~~[11. TO FILE A COMPLAINT OR NOTIFY THE JUVENILE COURT PURSUANT TO~~
6 ~~SUBSECTION G OF THIS SECTION IF THE PARENT, GUARDIAN OR CUSTODIAN BELIEVES~~
7 ~~THAT THE PARENT'S, GUARDIAN'S OR CUSTODIAN'S RIGHTS UNDER THIS SECTION ARE~~
8 ~~BEING VIOLATED.]~~

9 ~~10.~~ ~~[12.]~~ ~~[11.]~~ To be informed both verbally and in writing of
10 these rights and any parental rights under state law and to provide
11 written acknowledgement of receipt of these rights. ~~[THE PARENT, GUARDIAN~~
12 ~~OR CUSTODIAN SHALL PROVIDE A SIGNED ATTESTATION THAT THE PARENT, GUARDIAN~~
13 ~~OR CUSTODIAN UNDERSTANDS THE RIGHTS PROVIDED TO THE PARENT, GUARDIAN OR~~
14 ~~CUSTODIAN UNDER THIS SECTION.]~~

15 B. If a child safety worker has probable cause to believe that
16 exigent circumstances exist that present an imminent danger to the child,
17 the worker shall take all lawful measures to protect the child pursuant to
18 sections 8-821 and 8-822 before providing the notice of rights pursuant to
19 subsection A of this section.

20 C. Unless parental rights have been terminated, ~~OR~~ OR exigent
21 circumstances exist or as otherwise ordered by the court, a parent,
22 guardian or custodian whose child is placed in the department's custody
23 has the following rights:

24 1. To not have the child taken into department custody without the
25 department providing the reasons for removal and information supporting
26 the removal.

27 2. To the extent practicable, TO be immediately notified verbally
28 or in writing that the child was taken into custody.

29 3. To receive information on the services available to the child,
30 parent, guardian or custodian and the dependency process and timelines.

31 4. To have an attorney present or an attorney appointed by the
32 court at all court proceedings.

33 5. To be timely notified of the date, time and location of all
34 hearings and to participate in all hearings.

35 6. Whenever possible, to participate in the development of a case
36 plan.

37 7. To receive services if the child has been removed from the home,
38 including services that facilitate reunification of the family.

39 8. To maintain contact with the child unless it is determined by
40 the department or court to be harmful to the child's safety or well-being.

41 9. To be consulted about the child's medical care, education and
42 grooming.

43 10. To request that the child be returned if the court finds by a
44 preponderance of the evidence that the return of the child would not
45 create a substantial risk of harm to the child's physical, mental or
46 emotional health or safety.

1 D. The department shall provide information regarding a parent's,
2 guardian's or custodian's rights pursuant to this section and assistance
3 in understanding and enforcing these rights to each parent, guardian and
4 custodian on initial contact with a child safety worker or when there is a
5 change in the child's case plan. The information shall include the
6 telephone number and email address of the department, the department's
7 office of the ombudsman and the ombudsman-citizen aide.

8 ~~[E. ON INITIAL CONTACT WITH A CHILD SAFETY WORKER OR WHEN A CHILD~~
9 ~~IS PLACED IN THE DEPARTMENT'S CUSTODY, THE DEPARTMENT SHALL ASK THE~~
10 ~~PARENT, GUARDIAN OR CUSTODIAN TO IDENTIFY ADULT RELATIVES OF THE CHILD OR~~
11 ~~PERSONS WITH A SIGNIFICANT RELATIONSHIP WITH THE CHILD WHO MAY BE ABLE TO~~
12 ~~PROVIDE SAFE PLACEMENT FOR THE CHILD. THE DEPARTMENT SHALL DOCUMENT IN~~
13 ~~THE CHILD'S CASE FILE AND THE DEPARTMENT'S CASE MANAGEMENT SYSTEM THE~~
14 ~~INFORMATION PROVIDED BY THE PARENT, GUARDIAN OR CUSTODIAN OR THE REFUSAL~~
15 ~~OR INABILITY OF THE PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE THE~~
16 ~~INFORMATION.]~~

17 ~~F. THE FAILURE OF A PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE THE~~
18 ~~WRITTEN ACKNOWLEDGMENT PRESCRIBED IN SUBSECTION A, PARAGRAPH 12 OF THIS~~
19 ~~SECTION IS NOT A WAIVER OF ANY RIGHT PRESCRIBED BY THIS SECTION. THE~~
20 ~~DEPARTMENT SHALL MAINTAIN AND UPLOAD IN THE DEPARTMENT'S CASE MANAGEMENT~~
21 ~~SYSTEM THE COMPLIANCE OF A PARENT, GUARDIAN OR CUSTODIAN WITH THE~~
22 ~~REQUIREMENTS OF SUBSECTION A, PARAGRAPH 12 OF THIS SECTION.]~~

23 E. ~~[G.]~~ If a parent, guardian or custodian believes that the
24 person's rights under this section have been violated, the parent,
25 guardian or custodian or the person's representative may:

26 1. File a complaint with the department, the department's office of
27 the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376.
28 A formal grievance may be initiated with the ombudsman at any time.

29 2. Notify the juvenile court in the child's ongoing dependency or
30 severance proceeding, either orally or in writing, that the parent's,
31 guardian's or custodian's rights are being violated and request
32 appropriate equitable relief. The court shall act on the notification as
33 necessary within its discretion to promote the best interest of the child.

34 F. ~~[H.]~~ The rights provided in this section do not establish an
35 independent cause of action.

36 Enroll and engross to conform
37 Amend title to conform

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